

24STCV29962 24STCV29962

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-31

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C07%2F31%2F2026

Source SHA-256: de865096fa94fef65f58b6e52a41528e00b61c50c5212404a53e876a5c459d7

Case Number: 24STCV29962 Hearing Date: July 31, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

RHONDA TATUM,

Plaintiff,

vs.

FCA US LLC, et al.,

Defendants.

Case No.:

24STCV29962

Hearing Date:

July 31, 2026

Hearing Time: 2:00 p.m.

[TENTATIVE] ORDER RE:

DEFENDANT FCA US
LLC'S MOTION FOR JUDGMENT ON THE PLEADINGS

Background

On November 14, 2024,
Plaintiff Rhonda Tatum ("Plaintiff") filed this lemon law action against Defendant
FCA US, LLC ("FCA") and Los Angeles Chrysler Dodge Jeep Ram, alleging six
causes of action for (1) violation of subdivision (d) of Civil
Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision
(a)(3) of Civil Code section 1793.2, (4) breach of
the implied warranty of merchantability, (5) fraudulent inducement -
concealment, and (6) negligent repair.

FCA now moves for
judgment on the pleadings as to the fifth cause of action of the complaint. Plaintiff
filed a notice of non-opposition.

Trial is set in this
action for July 31, 2026.

Legal
Standard

A
defendant may move for judgment on the pleadings when
the "complaint does not state facts sufficient to constitute a cause of action
against the defendant." (Code Civ. Proc., § 438, subds.
(b)(1) and (c)(1)(B)(ii).) "A motion for judgment on the pleadings performs the
same function as a general demurrer, and hence attacks only defects disclosed
on the face of the pleadings or by matters that can be judicially noticed.
[Citations.] Presentation of extrinsic evidence is therefore not proper on a
motion for judgment on the pleadings." (Cloud v.
Northrop Grumman Corp. (1998) 67
Cal.App.4th 995, 999, citations omitted.)

The
standard for ruling on a motion for judgment on the pleadings is essentially
the same as that applicable to a general demurrer: that under the state of the

pleadings, together with matters that may be judicially noticed, it appears

that a party is entitled to judgment as a matter of law. ((Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.))

The court “must accept as true all material facts properly pleaded, but does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed.” ((Stevenson

Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006) 138 Cal.App.4th 1215, 1219-1220.))

Discussion

FCA

moves for judgment on the pleadings as to Plaintiff’s fifth cause of action for fraudulent inducement - concealment for lack of specificity and for being barred by the statute of limitations and the economic loss rule.

A. Allegations of the Complaint

Plaintiff alleges that “[o]n or about December 10, 2021, Plaintiff entered into a warranty contract with Defendant FCA regarding a 2022 Jeep Compass, ... which was manufactured and/or distributed by Defendant FCA.” (Compl., ¶ 7.) Plaintiff alleges that “[t]he warranty contract contained various warranties, including but not limited to the bumper-bumper warranty, powertrain warranty, emission warranty, etc.” (Compl., ¶ 8.) Plaintiff further alleges that “[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to, transmission defects, engine defects, electrical defects; among other defects and non-conformities,” and these “defects/nonconformities substantially impair the use, value, or safety of the Vehicle.” (Compl., ¶¶ 12-13.)

Plaintiff

alleges that, upon information and belief, “FCA knew since prior to Plaintiff purchasing the Subject Vehicle, that the 2022 Jeep Compass vehicles equipped with a 9-speed transmission are defective, contained one or more defect(s) to the transmission which may result in hesitation on acceleration, loss of power, hard and/or harsh shifts, and/or jerking (the ‘Transmission Defect’).” (Compl., ¶ 16.) “Thus, the Transmission Defect is a safety concern because it severely affects the driver’s ability to control the car’s speed, acceleration, and deceleration. For example, these conditions make it difficult to safely merge

into traffic or may cause a sudden loss of power or failure to accelerate while in motion. Even more troubling, the Transmission Defect can cause the vehicle to fail without warning, while the Vehicle is moving at highway speeds.” (Compl., ¶ 17.) Plaintiff further alleges that she is “a reasonable consumer who interacted with sales representatives, considered Defendant FCA’s advertisement, and/or other marketing materials concerning the Defendant FCA Vehicles prior to purchasing the Subject Vehicle. Had Defendant FCA revealed the Transmission Defect, Plaintiff would have been aware of it and would not have purchased the Subject Vehicle.” (Compl., ¶ 21.)

B.

Fraudulent Inducement - Concealment: Statute of Limitations

FCA moves for judgment on the pleadings on the grounds that Plaintiff’s fraudulent inducement - concealment claim is barred by the statute of limitations.

Pursuant

to Code of Civil Procedure section 338, subdivision

(d), there is a three-year statute of limitations for “an action for relief on the ground of fraud or mistake.” “The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Ibid.)

In the fifth cause of action, Plaintiff alleges that “FCA committed fraud by allowing the Subject Vehicle to be sold to Plaintiff without disclosing that the Subject Vehicle and its transmission were defective which can cause hesitation on acceleration, loss of power, hard and/or harsh shifts, and/or jerking.” (Compl., ¶ 59.)

FCA

asserts that “[t]he Complaint alleges that Plaintiff purchased the Subject Vehicle on or about December 10, 2021. (Complaint ¶ 7.) Absent sufficient tolling allegations, the statute of limitations expired three years later on December 10, 2024. (California Code of Civil Procedure § 338(d).) Plaintiff did not file this action until November 19, 2024.” (Mot., 8:13-17.)

FCA

appears to defeat its own contention. FCA correctly points out that the

applicable statute of limitations for fraud causes of action is three years. Because Plaintiff purchased the vehicle on December 10, 2021, absent a tolling exception, the statute of limitations expired on December 10, 2024. Plaintiff filed the instant action on November 19, 2024. Thus, this cause of action cannot be time-barred, as Plaintiff filed her case two years and eleven months after purchasing the vehicle. Accordingly, the Court denies FCA's motion for judgment on the pleadings as to fraudulent inducement - concealment based on the statute of limitations.

C.

Fraudulent Inducement - Concealment: Failure
to State a Cause of Action

FCA next moves for judgment on the pleadings on the grounds that Plaintiff's fifth cause of action is insufficiently alleged because Plaintiff failed to plead fraud with the requisite specificity.

"[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (Marketing West, Inc. v. Sanyo Fisher (USA) Corp. (1992) 6 Cal.App.4th 603, 612-613.) Less specificity is required if it appears from the nature of allegations that the defendant must necessarily possess full information, or if the facts lie more in the knowledge of opposing parties. (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384-1385 (Alfaro).)

As to specificity, FCA asserts that Plaintiffs' allegations fail, because "[a]lthough Plaintiff alleges that FCA had exclusive knowledge of the Transmission Defect (Complaint ¶ 22), Plaintiff fails to allege any specific facts identifying who possessed such knowledge or what information was known." (Mot., 15:1-3.) Moreover, FCA contends that "[t]he Complaint broadly asserts that FCA had superior and exclusive knowledge of an alleged Transmission Defect and actively concealed this information from Plaintiff at the time of sale. However, these claims are largely conclusory and

fail to plead the necessary elements with the required specificity.

Specifically, while Plaintiff contends that FCA obtained knowledge of the alleged defect from internal sources such as including pre- and post-production testing, market data, consumer complaints, and warranty data (Complaint, ¶¶ 19, 23, 61), the Complaint does not specify any particular misrepresentation or omission made directly to Plaintiff that induced reliance in purchasing the Subject Vehicle." (Mot., 16:21-17:2.)

The Court notes that when fraud occurs through nondisclosure, it is not practical to allege facts for something that did not happen. (Alfaro, supra, 171 Cal.App.4th at p. 1384 ["How does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?"].) Instead, such details, in the context of a fraudulent concealment claim, "are properly the subject of discovery, not demurrer." (Id., at pp. 1384-1385.)

FCA's argument is persuasive because, although Plaintiff pleads general facts that fit the required elements for a fraud claim, they are not pled with the specificity that a fraud claim requires. Even under Alfaro, a plaintiff still must plead what specific misrepresentations or omissions they relied on that induced their purchase, which, here, Plaintiff failed to do so. Accordingly, the motion for judgment on the pleadings is granted as to the fifth cause of action, with leave to amend.

In light of the ruling on the specificity issue, the Court need not address the other issues raised by FCA in the motion for judgment on the pleadings.

Conclusion

Based on the foregoing, FCA's motion for judgment on the pleadings as to the fifth cause of action is GRANTED.

FCA is ordered to give notice of this Order.

DATED: July
31, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court